MASTER SERVICES AGREEMENT

This Master Services Agreement (this "Agreement") is made and entered into as of 14 March 2024 (the "Effective Date") by and between Vedant Shree FZ-LLC, a company incorporated in the Dubai Multi Commodities Centre with its registered office at Unit 2401, Almas Tower, Jumeirah Lakes Towers, Dubai, United Arab Emirates (the "Client"), and Nexora Technologies Limited, a company incorporated in England and Wales with company number 09214773 whose registered office is at 18 Finsbury Circus, London EC2M 7EB, United Kingdom (the "Supplier"). The Client and the Supplier are each referred to herein as a "Party" and together as the "Parties".

WHEREAS the Client wishes to procure certain software engineering, data engineering and managed support services from the Supplier, and the Supplier is willing to provide such services on the terms set out in this Agreement.

NOW THEREFORE, in consideration of the mutual covenants contained herein and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

1.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

1.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

2. SCOPE OF SERVICES

2.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

2.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

2.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

3. FEES, INVOICING AND PAYMENT

3.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

3.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

3.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

3.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

4. TERM AND RENEWAL

4.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

4.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

5. CONFIDENTIALITY

5.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

5.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

5.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

6. INTELLECTUAL PROPERTY

6.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

6.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

7. DATA PROTECTION

7.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

7.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours,

after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

8. NON-SOLICITATION

8.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

8.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

9. INDEPENDENT CONTRACTOR

9.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

9.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

10. REPRESENTATIONS AND WARRANTIES

10.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

10.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

11. LIMITATION OF LIABILITY

11.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

11.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

11.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

12. TERMINATION

12.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

12.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

12.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services

performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

13. GOVERNING LAW AND DISPUTE RESOLUTION

13.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

13.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

14. NOTICES

14.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

14.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

15. ENTIRE AGREEMENT

15.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

15.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

16. COUNTERPARTS

16.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

16.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

100. SCHEDULE 1 — SUPPLEMENTAL TERMS

100.1 The following supplemental terms apply to Schedule 1 and form part of this Agreement.

101. DEFINITIONS AND INTERPRETATION

101.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

101.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated

association or governmental authority.

101.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

102. SCOPE OF SERVICES

102.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

102.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

102.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

103. FEES, INVOICING AND PAYMENT

103.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

103.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

103.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

103.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

104. TERM AND RENEWAL

104.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

104.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

105. CONFIDENTIALITY

105.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

105.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

105.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

106. INTELLECTUAL PROPERTY

106.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

106.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

107. DATA PROTECTION

107.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

107.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

108. NON-SOLICITATION

108.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

108.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

109. INDEPENDENT CONTRACTOR

109.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

109.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

110. REPRESENTATIONS AND WARRANTIES

110.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

110.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

111. LIMITATION OF LIABILITY

111.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

111.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

111.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

112. TERMINATION

112.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

112.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

112.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

113. GOVERNING LAW AND DISPUTE RESOLUTION

113.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

113.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

114. NOTICES

114.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

114.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

115. ENTIRE AGREEMENT

115.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

115.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not

expressly set out in this Agreement.

116. COUNTERPARTS

116.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

116.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

200. SCHEDULE 2 — SUPPLEMENTAL TERMS

200.1 The following supplemental terms apply to Schedule 2 and form part of this Agreement.

201. DEFINITIONS AND INTERPRETATION

201.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

201.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

201.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

202. SCOPE OF SERVICES

202.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

202.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

202.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

203. FEES, INVOICING AND PAYMENT

203.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

203.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

203.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

203.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

204. TERM AND RENEWAL

204.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

204.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

205. CONFIDENTIALITY

205.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

205.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

205.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

206. INTELLECTUAL PROPERTY

206.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

206.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

207. DATA PROTECTION

207.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

207.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

208. NON-SOLICITATION

208.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

208.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

209. INDEPENDENT CONTRACTOR

209.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

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210. REPRESENTATIONS AND WARRANTIES

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210.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

211. LIMITATION OF LIABILITY

211.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

211.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

211.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

212. TERMINATION

212.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

212.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

212.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

213. GOVERNING LAW AND DISPUTE RESOLUTION

213.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

213.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

214. NOTICES

214.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

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215. ENTIRE AGREEMENT

215.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

215.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

216. COUNTERPARTS

216.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

216.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

300. SCHEDULE 3 — SUPPLEMENTAL TERMS

300.1 The following supplemental terms apply to Schedule 3 and form part of this Agreement.

301. DEFINITIONS AND INTERPRETATION

301.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

301.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

301.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

302. SCOPE OF SERVICES

302.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

302.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

302.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

303. FEES, INVOICING AND PAYMENT

303.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

303.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

303.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

303.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

304. TERM AND RENEWAL

304.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

304.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

305. CONFIDENTIALITY

305.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

305.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

305.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years,

except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

306. INTELLECTUAL PROPERTY

306.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

306.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

307. DATA PROTECTION

307.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

307.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

308. NON-SOLICITATION

308.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

308.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

309. INDEPENDENT CONTRACTOR

309.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

309.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

310. REPRESENTATIONS AND WARRANTIES

310.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

310.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

311. LIMITATION OF LIABILITY

311.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the

event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

311.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

311.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

312. TERMINATION

312.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

312.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

312.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

313. GOVERNING LAW AND DISPUTE RESOLUTION

313.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

313.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

314. NOTICES

314.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

314.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

315. ENTIRE AGREEMENT

315.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

315.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

316. COUNTERPARTS

316.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an

original, and all of which together shall constitute one and the same instrument.

316.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

400. SCHEDULE 4 — SUPPLEMENTAL TERMS

400.1 The following supplemental terms apply to Schedule 4 and form part of this Agreement.

401. DEFINITIONS AND INTERPRETATION

401.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

401.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

401.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

402. SCOPE OF SERVICES

402.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

402.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

402.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

403. FEES, INVOICING AND PAYMENT

403.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

403.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

403.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

403.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

404. TERM AND RENEWAL

404.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

404.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

405. CONFIDENTIALITY

405.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

405.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

405.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

406. INTELLECTUAL PROPERTY

406.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

406.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

407. DATA PROTECTION

407.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

407.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

408. NON-SOLICITATION

408.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

408.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

409. INDEPENDENT CONTRACTOR

409.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

409.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

410. REPRESENTATIONS AND WARRANTIES

410.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

410.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

411. LIMITATION OF LIABILITY

411.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

411.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

411.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

412. TERMINATION

412.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

412.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

412.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

413. GOVERNING LAW AND DISPUTE RESOLUTION

413.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

413.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

414. NOTICES

414.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

414.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

415. ENTIRE AGREEMENT

415.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

415.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

416. COUNTERPARTS

416.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

416.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

500. SCHEDULE 5 — SUPPLEMENTAL TERMS

500.1 The following supplemental terms apply to Schedule 5 and form part of this Agreement.

501. DEFINITIONS AND INTERPRETATION

501.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

501.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

501.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

502. SCOPE OF SERVICES

502.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the

skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

502.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

502.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

503. FEES, INVOICING AND PAYMENT

503.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

503.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

503.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

503.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

504. TERM AND RENEWAL

504.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

504.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

505. CONFIDENTIALITY

505.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

505.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

505.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

506. INTELLECTUAL PROPERTY

506.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

506.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

507. DATA PROTECTION

507.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

507.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

508. NON-SOLICITATION

508.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

508.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

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509.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

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510.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

511. LIMITATION OF LIABILITY

511.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

511.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

511.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

512. TERMINATION

512.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

512.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

512.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

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514. NOTICES

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514.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

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516. COUNTERPARTS

516.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

516.2 Delivery of an executed counterpart by email in portable document format shall be as effective as

delivery of a manually executed counterpart.

600. SCHEDULE 6 — SUPPLEMENTAL TERMS

600.1 The following supplemental terms apply to Schedule 6 and form part of this Agreement.

601. DEFINITIONS AND INTERPRETATION

601.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

601.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

601.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

602. SCOPE OF SERVICES

602.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

602.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

602.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

603. FEES, INVOICING AND PAYMENT

603.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

603.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

603.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

603.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

604. TERM AND RENEWAL

604.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

604.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

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605.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

605.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

606. INTELLECTUAL PROPERTY

606.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

606.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

607. DATA PROTECTION

607.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

607.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

608. NON-SOLICITATION

608.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

608.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

609. INDEPENDENT CONTRACTOR

609.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

609.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

610. REPRESENTATIONS AND WARRANTIES

610.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

610.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

611. LIMITATION OF LIABILITY

611.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

611.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

611.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

612. TERMINATION

612.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

612.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

612.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

613. GOVERNING LAW AND DISPUTE RESOLUTION

613.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

613.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

614. NOTICES

614.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

614.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

615. ENTIRE AGREEMENT

615.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

615.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

616. COUNTERPARTS

616.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

616.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

700. SCHEDULE 7 — SUPPLEMENTAL TERMS

700.1 The following supplemental terms apply to Schedule 7 and form part of this Agreement.

701. DEFINITIONS AND INTERPRETATION

701.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

701.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

701.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

702. SCOPE OF SERVICES

702.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

702.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of

Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

702.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

703. FEES, INVOICING AND PAYMENT

703.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

703.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

703.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

703.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

704. TERM AND RENEWAL

704.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

704.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

705. CONFIDENTIALITY

705.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

705.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

705.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

706. INTELLECTUAL PROPERTY

706.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

706.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

707. DATA PROTECTION

707.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

707.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

708. NON-SOLICITATION

708.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

708.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

709. INDEPENDENT CONTRACTOR

709.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

709.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

710. REPRESENTATIONS AND WARRANTIES

710.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

710.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

711. LIMITATION OF LIABILITY

711.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

711.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

711.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury

caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

712. TERMINATION

712.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

712.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

712.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

713. GOVERNING LAW AND DISPUTE RESOLUTION

713.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

713.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

714. NOTICES

714.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

714.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

715. ENTIRE AGREEMENT

715.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

715.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

716. COUNTERPARTS

716.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

716.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

800. SCHEDULE 8 — SUPPLEMENTAL TERMS

800.1 The following supplemental terms apply to Schedule 8 and form part of this Agreement.

801. DEFINITIONS AND INTERPRETATION

801.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

801.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

801.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

802. SCOPE OF SERVICES

802.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

802.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

802.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

803. FEES, INVOICING AND PAYMENT

803.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

803.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

803.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

803.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

804. TERM AND RENEWAL

804.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

804.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

805. CONFIDENTIALITY

805.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

805.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

805.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

806. INTELLECTUAL PROPERTY

806.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

806.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

807. DATA PROTECTION

807.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

807.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

808. NON-SOLICITATION

808.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

808.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

809. INDEPENDENT CONTRACTOR

809.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

809.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions

and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

810. REPRESENTATIONS AND WARRANTIES

810.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

810.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

811. LIMITATION OF LIABILITY

811.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

811.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

811.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

812. TERMINATION

812.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

812.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

812.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

813. GOVERNING LAW AND DISPUTE RESOLUTION

813.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

813.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

814. NOTICES

814.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

814.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

815. ENTIRE AGREEMENT

815.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

815.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

816. COUNTERPARTS

816.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

816.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

900. SCHEDULE 9 — SUPPLEMENTAL TERMS

900.1 The following supplemental terms apply to Schedule 9 and form part of this Agreement.

901. DEFINITIONS AND INTERPRETATION

901.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

901.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

901.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

902. SCOPE OF SERVICES

902.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

902.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

902.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that

any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

903. FEES, INVOICING AND PAYMENT

903.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

903.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

903.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

903.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

904. TERM AND RENEWAL

904.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

904.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

905. CONFIDENTIALITY

905.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

905.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

905.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

906. INTELLECTUAL PROPERTY

906.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

906.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

907. DATA PROTECTION

907.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

907.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

908. NON-SOLICITATION

908.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

908.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

909. INDEPENDENT CONTRACTOR

909.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

909.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

910. REPRESENTATIONS AND WARRANTIES

910.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

910.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

911. LIMITATION OF LIABILITY

911.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

911.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

911.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

912. TERMINATION

912.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

912.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

912.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

913. GOVERNING LAW AND DISPUTE RESOLUTION

913.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

913.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

914. NOTICES

914.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

914.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

915. ENTIRE AGREEMENT

915.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

915.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

916. COUNTERPARTS

916.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

916.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

1000. SCHEDULE 10 — SUPPLEMENTAL TERMS

1000.1 The following supplemental terms apply to Schedule 10 and form part of this Agreement.

1001. DEFINITIONS AND INTERPRETATION

1001.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under

common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

1001.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

1001.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

1002. SCOPE OF SERVICES

1002.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

1002.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

1002.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

1003. FEES, INVOICING AND PAYMENT

1003.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

1003.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

1003.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

1003.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

1004. TERM AND RENEWAL

1004.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

1004.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

1005. CONFIDENTIALITY

1005.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

1005.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

1005.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

1006. INTELLECTUAL PROPERTY

1006.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

1006.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

1007. DATA PROTECTION

1007.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

1007.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

1008. NON-SOLICITATION

1008.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

1008.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

1009. INDEPENDENT CONTRACTOR

1009.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

1009.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

1010. REPRESENTATIONS AND WARRANTIES

1010.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

1010.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

1011. LIMITATION OF LIABILITY

1011.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

1011.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

1011.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

1012. TERMINATION

1012.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

1012.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

1012.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

1013. GOVERNING LAW AND DISPUTE RESOLUTION

1013.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

1013.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

1014. NOTICES

1014.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

1014.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no

bounce or error message is received.

1015. ENTIRE AGREEMENT

1015.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

1015.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

1016. COUNTERPARTS

1016.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

1016.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

1100. SCHEDULE 11 — SUPPLEMENTAL TERMS

1100.1 The following supplemental terms apply to Schedule 11 and form part of this Agreement.

1101. DEFINITIONS AND INTERPRETATION

1101.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

1101.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

1101.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

1102. SCOPE OF SERVICES

1102.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

1102.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

1102.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

1103. FEES, INVOICING AND PAYMENT

1103.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

1103.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

1103.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

1103.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

1104. TERM AND RENEWAL

1104.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

1104.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

1105. CONFIDENTIALITY

1105.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

1105.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

1105.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

1106. INTELLECTUAL PROPERTY

1106.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

1106.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

1107. DATA PROTECTION

1107.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

1107.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

1108. NON-SOLICITATION

1108.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

1108.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

1109. INDEPENDENT CONTRACTOR

1109.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

1109.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

1110. REPRESENTATIONS AND WARRANTIES

1110.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

1110.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

1111. LIMITATION OF LIABILITY

1111.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

1111.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

1111.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

1112. TERMINATION

1112.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a

material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

1112.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

1112.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

1113. GOVERNING LAW AND DISPUTE RESOLUTION

1113.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

1113.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

1114. NOTICES

1114.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

1114.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

1115. ENTIRE AGREEMENT

1115.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

1115.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

1116. COUNTERPARTS

1116.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

1116.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

1200. SCHEDULE 12 — SUPPLEMENTAL TERMS

1200.1 The following supplemental terms apply to Schedule 12 and form part of this Agreement.

1201. DEFINITIONS AND INTERPRETATION

1201.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in

the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

1201.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

1201.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

1202. SCOPE OF SERVICES

1202.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

1202.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

1202.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

1203. FEES, INVOICING AND PAYMENT

1203.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

1203.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

1203.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

1203.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

1204. TERM AND RENEWAL

1204.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

1204.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

1205. CONFIDENTIALITY

1205.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

1205.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

1205.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

1206. INTELLECTUAL PROPERTY

1206.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

1206.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

1207. DATA PROTECTION

1207.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

1207.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

1208. NON-SOLICITATION

1208.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

1208.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

1209. INDEPENDENT CONTRACTOR

1209.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

1209.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

1210. REPRESENTATIONS AND WARRANTIES

1210.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

1210.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

1211. LIMITATION OF LIABILITY

1211.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

1211.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

1211.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

1212. TERMINATION

1212.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

1212.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

1212.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

1213. GOVERNING LAW AND DISPUTE RESOLUTION

1213.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

1213.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

1214. NOTICES

1214.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

1214.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

1215. ENTIRE AGREEMENT

1215.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

1215.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

1216. COUNTERPARTS

1216.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

1216.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

1300. SCHEDULE 13 — SUPPLEMENTAL TERMS

1300.1 The following supplemental terms apply to Schedule 13 and form part of this Agreement.

1301. DEFINITIONS AND INTERPRETATION

1301.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

1301.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

1301.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

1302. SCOPE OF SERVICES

1302.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

1302.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

1302.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

1303. FEES, INVOICING AND PAYMENT

1303.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

1303.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

1303.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

1303.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

1304. TERM AND RENEWAL

1304.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

1304.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

1305. CONFIDENTIALITY

1305.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

1305.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

1305.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

1306. INTELLECTUAL PROPERTY

1306.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

1306.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

1307. DATA PROTECTION

1307.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate

technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

1307.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

1308. NON-SOLICITATION

1308.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

1308.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

1309. INDEPENDENT CONTRACTOR

1309.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

1309.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

1310. REPRESENTATIONS AND WARRANTIES

1310.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

1310.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

1311. LIMITATION OF LIABILITY

1311.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

1311.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

1311.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

1312. TERMINATION

1312.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

1312.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

1312.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

1313. GOVERNING LAW AND DISPUTE RESOLUTION

1313.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

1313.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

1314. NOTICES

1314.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

1314.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

1315. ENTIRE AGREEMENT

1315.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

1315.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

1316. COUNTERPARTS

1316.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

1316.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

1400. SCHEDULE 14 — SUPPLEMENTAL TERMS

1400.1 The following supplemental terms apply to Schedule 14 and form part of this Agreement.

1401. DEFINITIONS AND INTERPRETATION

1401.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

1401.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

1401.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

1402. SCOPE OF SERVICES

1402.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

1402.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

1402.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

1403. FEES, INVOICING AND PAYMENT

1403.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

1403.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

1403.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

1403.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

1404. TERM AND RENEWAL

1404.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

1404.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

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1405.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it

solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

1405.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

1405.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

1406. INTELLECTUAL PROPERTY

1406.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

1406.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

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1416.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

1500. SCHEDULE 15 — SUPPLEMENTAL TERMS

1500.1 The following supplemental terms apply to Schedule 15 and form part of this Agreement.

1501. DEFINITIONS AND INTERPRETATION

1501.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

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1501.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

1502. SCOPE OF SERVICES

1502.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

1502.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

1502.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

1503. FEES, INVOICING AND PAYMENT

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1503.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

1503.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

1504. TERM AND RENEWAL

1504.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

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1505.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

1505.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

1506. INTELLECTUAL PROPERTY

1506.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

1506.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

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1507.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

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hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

1508. NON-SOLICITATION

1508.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

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1511. LIMITATION OF LIABILITY

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1511.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

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1512. TERMINATION

1512.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

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1516.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

1600. SCHEDULE 16 — SUPPLEMENTAL TERMS

1600.1 The following supplemental terms apply to Schedule 16 and form part of this Agreement.

1601. DEFINITIONS AND INTERPRETATION

1601.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

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1602.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

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1613. GOVERNING LAW AND DISPUTE RESOLUTION

1613.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

1613.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

1614. NOTICES

1614.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

1614.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

1615. ENTIRE AGREEMENT

1615.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

1615.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is

not expressly set out in this Agreement.

1616. COUNTERPARTS

1616.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

1616.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

1700. SCHEDULE 17 — SUPPLEMENTAL TERMS

1700.1 The following supplemental terms apply to Schedule 17 and form part of this Agreement.

1701. DEFINITIONS AND INTERPRETATION

1701.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

1701.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

1701.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

1702. SCOPE OF SERVICES

1702.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

1702.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

1702.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

1703. FEES, INVOICING AND PAYMENT

1703.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

1703.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

1703.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

1703.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

1704. TERM AND RENEWAL

1704.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

1704.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

1705. CONFIDENTIALITY

1705.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

1705.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

1705.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

1706. INTELLECTUAL PROPERTY

1706.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

1706.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

1707. DATA PROTECTION

1707.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

1707.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

1708. NON-SOLICITATION

1708.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

1708.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

1709. INDEPENDENT CONTRACTOR

1709.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

1709.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

1710. REPRESENTATIONS AND WARRANTIES

1710.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

1710.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

1711. LIMITATION OF LIABILITY

1711.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

1711.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

1711.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

1712. TERMINATION

1712.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

1712.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

1712.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

1713. GOVERNING LAW AND DISPUTE RESOLUTION

1713.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

1713.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

1714. NOTICES

1714.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

1714.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

1715. ENTIRE AGREEMENT

1715.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

1715.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

1716. COUNTERPARTS

1716.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

1716.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

1800. SCHEDULE 18 — SUPPLEMENTAL TERMS

1800.1 The following supplemental terms apply to Schedule 18 and form part of this Agreement.

1801. DEFINITIONS AND INTERPRETATION

1801.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

1801.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

1801.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

1802. SCOPE OF SERVICES

1802.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

1802.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

1802.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

1803. FEES, INVOICING AND PAYMENT

1803.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

1803.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

1803.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

1803.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

1804. TERM AND RENEWAL

1804.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

1804.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

1805. CONFIDENTIALITY

1805.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

1805.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

1805.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5)

years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

1806. INTELLECTUAL PROPERTY

1806.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

1806.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

1807. DATA PROTECTION

1807.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

1807.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

1808. NON-SOLICITATION

1808.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

1808.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

1809. INDEPENDENT CONTRACTOR

1809.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

1809.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

1810. REPRESENTATIONS AND WARRANTIES

1810.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

1810.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

1811. LIMITATION OF LIABILITY

1811.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the

total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

1811.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

1811.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

1812. TERMINATION

1812.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

1812.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

1812.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

1813. GOVERNING LAW AND DISPUTE RESOLUTION

1813.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

1813.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

1814. NOTICES

1814.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

1814.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

1815. ENTIRE AGREEMENT

1815.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

1815.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

1816. COUNTERPARTS

1816.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

1816.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

1900. SCHEDULE 19 — SUPPLEMENTAL TERMS

1900.1 The following supplemental terms apply to Schedule 19 and form part of this Agreement.

1901. DEFINITIONS AND INTERPRETATION

1901.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

1901.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

1901.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

1902. SCOPE OF SERVICES

1902.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

1902.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

1902.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

1903. FEES, INVOICING AND PAYMENT

1903.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

1903.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

1903.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

1903.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

1904. TERM AND RENEWAL

1904.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

1904.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

1905. CONFIDENTIALITY

1905.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

1905.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

1905.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

1906. INTELLECTUAL PROPERTY

1906.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

1906.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

1907. DATA PROTECTION

1907.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

1907.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

1908. NON-SOLICITATION

1908.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

1908.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

1909. INDEPENDENT CONTRACTOR

1909.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

1909.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

1910. REPRESENTATIONS AND WARRANTIES

1910.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

1910.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

1911. LIMITATION OF LIABILITY

1911.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

1911.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

1911.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

1912. TERMINATION

1912.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

1912.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

1912.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

1913. GOVERNING LAW AND DISPUTE RESOLUTION

1913.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

1913.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

1914. NOTICES

1914.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

1914.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

1915. ENTIRE AGREEMENT

1915.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

1915.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

1916. COUNTERPARTS

1916.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

1916.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

2000. SCHEDULE 20 — SUPPLEMENTAL TERMS

2000.1 The following supplemental terms apply to Schedule 20 and form part of this Agreement.

2001. DEFINITIONS AND INTERPRETATION

2001.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

2001.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

2001.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

2002. SCOPE OF SERVICES

2002.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the

skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

2002.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

2002.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

2003. FEES, INVOICING AND PAYMENT

2003.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

2003.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

2003.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

2003.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

2004. TERM AND RENEWAL

2004.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

2004.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

2005. CONFIDENTIALITY

2005.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

2005.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

2005.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

2006. INTELLECTUAL PROPERTY

2006.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

2006.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how (''Supplier Background IP''), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

2007. DATA PROTECTION

2007.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

2007.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

2008. NON-SOLICITATION

2008.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

2008.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

2009. INDEPENDENT CONTRACTOR

2009.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

2009.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

2010. REPRESENTATIONS AND WARRANTIES

2010.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

2010.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

2011. LIMITATION OF LIABILITY

2011.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

2011.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

2011.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

2012. TERMINATION

2012.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

2012.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

2012.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

2013. GOVERNING LAW AND DISPUTE RESOLUTION

2013.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

2013.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

2014. NOTICES

2014.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

2014.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

2015. ENTIRE AGREEMENT

2015.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

2015.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

2016. COUNTERPARTS

2016.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

2016.2 Delivery of an executed counterpart by email in portable document format shall be as effective as

delivery of a manually executed counterpart.

2100. SCHEDULE 21 — SUPPLEMENTAL TERMS

2100.1 The following supplemental terms apply to Schedule 21 and form part of this Agreement.

2101. DEFINITIONS AND INTERPRETATION

2101.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

2101.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

2101.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

2102. SCOPE OF SERVICES

2102.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

2102.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

2102.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

2103. FEES, INVOICING AND PAYMENT

2103.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

2103.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

2103.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

2103.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

2104. TERM AND RENEWAL

2104.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

2104.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

2105. CONFIDENTIALITY

2105.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

2105.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

2105.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

2106. INTELLECTUAL PROPERTY

2106.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

2106.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

2107. DATA PROTECTION

2107.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

2107.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

2108. NON-SOLICITATION

2108.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

2108.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

2109. INDEPENDENT CONTRACTOR

2109.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

2109.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

2110. REPRESENTATIONS AND WARRANTIES

2110.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

2110.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

2111. LIMITATION OF LIABILITY

2111.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

2111.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

2111.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

2112. TERMINATION

2112.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

2112.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

2112.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

2113. GOVERNING LAW AND DISPUTE RESOLUTION

2113.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

2113.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of

the courts of Dubai.

2114. NOTICES

2114.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

2114.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

2115. ENTIRE AGREEMENT

2115.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

2115.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

2116. COUNTERPARTS

2116.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

2116.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

2200. SCHEDULE 22 — SUPPLEMENTAL TERMS

2200.1 The following supplemental terms apply to Schedule 22 and form part of this Agreement.

2201. DEFINITIONS AND INTERPRETATION

2201.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

2201.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

2201.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

2202. SCOPE OF SERVICES

2202.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

2202.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

2202.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

2203. FEES, INVOICING AND PAYMENT

2203.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

2203.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

2203.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

2203.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

2204. TERM AND RENEWAL

2204.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

2204.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

2205. CONFIDENTIALITY

2205.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

2205.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

2205.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

2206. INTELLECTUAL PROPERTY

2206.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client

under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

2206.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

2207. DATA PROTECTION

2207.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

2207.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

2208. NON-SOLICITATION

2208.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

2208.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

2209. INDEPENDENT CONTRACTOR

2209.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

2209.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

2210. REPRESENTATIONS AND WARRANTIES

2210.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

2210.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

2211. LIMITATION OF LIABILITY

2211.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

2211.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising

in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

2211.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

2212. TERMINATION

2212.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

2212.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

2212.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

2213. GOVERNING LAW AND DISPUTE RESOLUTION

2213.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

2213.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

2214. NOTICES

2214.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

2214.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

2215. ENTIRE AGREEMENT

2215.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

2215.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

2216. COUNTERPARTS

2216.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

2216.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

2300. SCHEDULE 23 — SUPPLEMENTAL TERMS

2300.1 The following supplemental terms apply to Schedule 23 and form part of this Agreement.

2301. DEFINITIONS AND INTERPRETATION

2301.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

2301.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

2301.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

2302. SCOPE OF SERVICES

2302.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

2302.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

2302.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

2303. FEES, INVOICING AND PAYMENT

2303.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

2303.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

2303.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

2303.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

2304. TERM AND RENEWAL

2304.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

2304.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

2305. CONFIDENTIALITY

2305.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

2305.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

2305.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

2306. INTELLECTUAL PROPERTY

2306.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

2306.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

2307. DATA PROTECTION

2307.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

2307.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

2308. NON-SOLICITATION

2308.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

2308.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

2309. INDEPENDENT CONTRACTOR

2309.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

2309.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

2310. REPRESENTATIONS AND WARRANTIES

2310.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

2310.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

2311. LIMITATION OF LIABILITY

2311.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

2311.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

2311.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

2312. TERMINATION

2312.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

2312.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

2312.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

2313. GOVERNING LAW AND DISPUTE RESOLUTION

2313.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

2313.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

2314. NOTICES

2314.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

2314.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

2315. ENTIRE AGREEMENT

2315.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

2315.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

2316. COUNTERPARTS

2316.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

2316.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

2400. SCHEDULE 24 — SUPPLEMENTAL TERMS

2400.1 The following supplemental terms apply to Schedule 24 and form part of this Agreement.

2401. DEFINITIONS AND INTERPRETATION

2401.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

2401.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

2401.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

2402. SCOPE OF SERVICES

2402.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

2402.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of

Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

2402.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

2403. FEES, INVOICING AND PAYMENT

2403.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

2403.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

2403.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

2403.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

2404. TERM AND RENEWAL

2404.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

2404.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

2405. CONFIDENTIALITY

2405.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

2405.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

2405.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

2406. INTELLECTUAL PROPERTY

2406.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

2406.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

2407. DATA PROTECTION

2407.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

2407.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

2408. NON-SOLICITATION

2408.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

2408.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

2409. INDEPENDENT CONTRACTOR

2409.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

2409.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

2410. REPRESENTATIONS AND WARRANTIES

2410.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

2410.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

2411. LIMITATION OF LIABILITY

2411.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

2411.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

2411.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

2412. TERMINATION

2412.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

2412.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

2412.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

2413. GOVERNING LAW AND DISPUTE RESOLUTION

2413.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

2413.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

2414. NOTICES

2414.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

2414.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

2415. ENTIRE AGREEMENT

2415.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

2415.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

2416. COUNTERPARTS

2416.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

2416.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

2500. SCHEDULE 25 — SUPPLEMENTAL TERMS

2500.1 The following supplemental terms apply to Schedule 25 and form part of this Agreement.

2501. DEFINITIONS AND INTERPRETATION

2501.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

2501.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

2501.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

2502. SCOPE OF SERVICES

2502.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

2502.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

2502.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

2503. FEES, INVOICING AND PAYMENT

2503.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

2503.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

2503.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

2503.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

2504. TERM AND RENEWAL

2504.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of

twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

2504.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

2505. CONFIDENTIALITY

2505.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

2505.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

2505.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

2506. INTELLECTUAL PROPERTY

2506.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

2506.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

2507. DATA PROTECTION

2507.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

2507.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

2508. NON-SOLICITATION

2508.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

2508.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

2509. INDEPENDENT CONTRACTOR

2509.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as

creating a partnership, joint venture, agency or employment relationship between the Parties.

2509.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

2510. REPRESENTATIONS AND WARRANTIES

2510.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

2510.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

2511. LIMITATION OF LIABILITY

2511.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

2511.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

2511.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

2512. TERMINATION

2512.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

2512.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

2512.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

2513. GOVERNING LAW AND DISPUTE RESOLUTION

2513.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

2513.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

2514. NOTICES

2514.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

2514.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

2515. ENTIRE AGREEMENT

2515.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

2515.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

2516. COUNTERPARTS

2516.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

2516.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

2600. SCHEDULE 26 — SUPPLEMENTAL TERMS

2600.1 The following supplemental terms apply to Schedule 26 and form part of this Agreement.

2601. DEFINITIONS AND INTERPRETATION

2601.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

2601.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

2601.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

2602. SCOPE OF SERVICES

2602.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

2602.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

2602.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

2603. FEES, INVOICING AND PAYMENT

2603.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

2603.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

2603.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

2603.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

2604. TERM AND RENEWAL

2604.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

2604.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

2605. CONFIDENTIALITY

2605.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

2605.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

2605.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

2606. INTELLECTUAL PROPERTY

2606.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

2606.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free

licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

2607. DATA PROTECTION

2607.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

2607.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

2608. NON-SOLICITATION

2608.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

2608.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

2609. INDEPENDENT CONTRACTOR

2609.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

2609.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

2610. REPRESENTATIONS AND WARRANTIES

2610.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

2610.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

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2611.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

2611.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

2611.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

2612. TERMINATION

2612.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

2612.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

2612.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

2613. GOVERNING LAW AND DISPUTE RESOLUTION

2613.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

2613.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

2614. NOTICES

2614.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

2614.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

2615. ENTIRE AGREEMENT

2615.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

2615.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

2616. COUNTERPARTS

2616.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

2616.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

2700. SCHEDULE 27 — SUPPLEMENTAL TERMS

2700.1 The following supplemental terms apply to Schedule 27 and form part of this Agreement.

2701. DEFINITIONS AND INTERPRETATION

2701.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

2701.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

2701.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

2702. SCOPE OF SERVICES

2702.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

2702.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

2702.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

2703. FEES, INVOICING AND PAYMENT

2703.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

2703.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

2703.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

2703.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

2704. TERM AND RENEWAL

2704.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

2704.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than

ninety (90) days before the end of the then-current term.

2705. CONFIDENTIALITY

2705.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

2705.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

2705.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

2706. INTELLECTUAL PROPERTY

2706.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

2706.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

2707. DATA PROTECTION

2707.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

2707.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

2708. NON-SOLICITATION

2708.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

2708.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

2709. INDEPENDENT CONTRACTOR

2709.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

2709.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any

liability arising from a failure to make such payments.

2710. REPRESENTATIONS AND WARRANTIES

2710.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

2710.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

2711. LIMITATION OF LIABILITY

2711.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

2711.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

2711.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

2712. TERMINATION

2712.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

2712.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

2712.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

2713. GOVERNING LAW AND DISPUTE RESOLUTION

2713.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

2713.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

2714. NOTICES

2714.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

2714.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

2715. ENTIRE AGREEMENT

2715.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

2715.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

2716. COUNTERPARTS

2716.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

2716.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

2800. SCHEDULE 28 — SUPPLEMENTAL TERMS

2800.1 The following supplemental terms apply to Schedule 28 and form part of this Agreement.

2801. DEFINITIONS AND INTERPRETATION

2801.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

2801.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

2801.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

2802. SCOPE OF SERVICES

2802.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

2802.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

2802.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that

any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

2803. FEES, INVOICING AND PAYMENT

2803.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

2803.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

2803.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

2803.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

2804. TERM AND RENEWAL

2804.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

2804.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

2805. CONFIDENTIALITY

2805.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

2805.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

2805.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

2806. INTELLECTUAL PROPERTY

2806.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

2806.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

2807. DATA PROTECTION

2807.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

2807.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

2808. NON-SOLICITATION

2808.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

2808.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

2809. INDEPENDENT CONTRACTOR

2809.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

2809.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

2810. REPRESENTATIONS AND WARRANTIES

2810.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

2810.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

2811. LIMITATION OF LIABILITY

2811.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

2811.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

2811.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

2812. TERMINATION

2812.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

2812.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

2812.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

2813. GOVERNING LAW AND DISPUTE RESOLUTION

2813.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

2813.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

2814. NOTICES

2814.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

2814.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

2815. ENTIRE AGREEMENT

2815.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

2815.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

2816. COUNTERPARTS

2816.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

2816.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

2900. SCHEDULE 29 — SUPPLEMENTAL TERMS

2900.1 The following supplemental terms apply to Schedule 29 and form part of this Agreement.

2901. DEFINITIONS AND INTERPRETATION

2901.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under

common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

2901.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

2901.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

2902. SCOPE OF SERVICES

2902.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

2902.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

2902.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

2903. FEES, INVOICING AND PAYMENT

2903.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

2903.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

2903.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

2903.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

2904. TERM AND RENEWAL

2904.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

2904.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

2905. CONFIDENTIALITY

2905.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

2905.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

2905.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

2906. INTELLECTUAL PROPERTY

2906.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

2906.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

2907. DATA PROTECTION

2907.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

2907.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

2908. NON-SOLICITATION

2908.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

2908.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

2909. INDEPENDENT CONTRACTOR

2909.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

2909.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

2910. REPRESENTATIONS AND WARRANTIES

2910.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

2910.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

2911. LIMITATION OF LIABILITY

2911.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

2911.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

2911.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

2912. TERMINATION

2912.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

2912.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

2912.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

2913. GOVERNING LAW AND DISPUTE RESOLUTION

2913.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

2913.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

2914. NOTICES

2914.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

2914.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no

bounce or error message is received.

2915. ENTIRE AGREEMENT

2915.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

2915.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

2916. COUNTERPARTS

2916.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

2916.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

3000. SCHEDULE 30 — SUPPLEMENTAL TERMS

3000.1 The following supplemental terms apply to Schedule 30 and form part of this Agreement.

3001. DEFINITIONS AND INTERPRETATION

3001.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

3001.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

3001.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

3002. SCOPE OF SERVICES

3002.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

3002.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

3002.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

3003. FEES, INVOICING AND PAYMENT

3003.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

3003.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

3003.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

3003.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

3004. TERM AND RENEWAL

3004.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

3004.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

3005. CONFIDENTIALITY

3005.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

3005.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

3005.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

3006. INTELLECTUAL PROPERTY

3006.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

3006.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

3007. DATA PROTECTION

3007.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

3007.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

3008. NON-SOLICITATION

3008.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

3008.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

3009. INDEPENDENT CONTRACTOR

3009.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

3009.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

3010. REPRESENTATIONS AND WARRANTIES

3010.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

3010.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

3011. LIMITATION OF LIABILITY

3011.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

3011.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

3011.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

3012. TERMINATION

3012.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a

material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

3012.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

3012.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

3013. GOVERNING LAW AND DISPUTE RESOLUTION

3013.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

3013.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

3014. NOTICES

3014.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

3014.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

3015. ENTIRE AGREEMENT

3015.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

3015.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

3016. COUNTERPARTS

3016.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

3016.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

3100. SCHEDULE 31 — SUPPLEMENTAL TERMS

3100.1 The following supplemental terms apply to Schedule 31 and form part of this Agreement.

3101. DEFINITIONS AND INTERPRETATION

3101.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in

the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

3101.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

3101.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

3102. SCOPE OF SERVICES

3102.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

3102.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

3102.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

3103. FEES, INVOICING AND PAYMENT

3103.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

3103.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

3103.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

3103.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

3104. TERM AND RENEWAL

3104.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

3104.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

3105. CONFIDENTIALITY

3105.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

3105.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

3105.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

3106. INTELLECTUAL PROPERTY

3106.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

3106.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

3107. DATA PROTECTION

3107.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

3107.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

3108. NON-SOLICITATION

3108.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

3108.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

3109. INDEPENDENT CONTRACTOR

3109.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

3109.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

3110. REPRESENTATIONS AND WARRANTIES

3110.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

3110.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

3111. LIMITATION OF LIABILITY

3111.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

3111.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

3111.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

3112. TERMINATION

3112.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

3112.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

3112.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

3113. GOVERNING LAW AND DISPUTE RESOLUTION

3113.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

3113.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

3114. NOTICES

3114.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

3114.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

3115. ENTIRE AGREEMENT

3115.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

3115.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

3116. COUNTERPARTS

3116.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

3116.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

3200. SCHEDULE 32 — SUPPLEMENTAL TERMS

3200.1 The following supplemental terms apply to Schedule 32 and form part of this Agreement.

3201. DEFINITIONS AND INTERPRETATION

3201.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

3201.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

3201.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

3202. SCOPE OF SERVICES

3202.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

3202.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

3202.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

3203. FEES, INVOICING AND PAYMENT

3203.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

3203.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

3203.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

3203.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

3204. TERM AND RENEWAL

3204.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

3204.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

3205. CONFIDENTIALITY

3205.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

3205.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

3205.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

3206. INTELLECTUAL PROPERTY

3206.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

3206.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

3207. DATA PROTECTION

3207.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate

technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

3207.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

3208. NON-SOLICITATION

3208.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

3208.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

3209. INDEPENDENT CONTRACTOR

3209.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

3209.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

3210. REPRESENTATIONS AND WARRANTIES

3210.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

3210.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

3211. LIMITATION OF LIABILITY

3211.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

3211.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

3211.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

3212. TERMINATION

3212.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

3212.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

3212.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

3213. GOVERNING LAW AND DISPUTE RESOLUTION

3213.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

3213.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

3214. NOTICES

3214.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

3214.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

3215. ENTIRE AGREEMENT

3215.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

3215.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

3216. COUNTERPARTS

3216.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

3216.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

3300. SCHEDULE 33 — SUPPLEMENTAL TERMS

3300.1 The following supplemental terms apply to Schedule 33 and form part of this Agreement.

3301. DEFINITIONS AND INTERPRETATION

3301.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

3301.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

3301.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

3302. SCOPE OF SERVICES

3302.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

3302.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

3302.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

3303. FEES, INVOICING AND PAYMENT

3303.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

3303.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

3303.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

3303.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

3304. TERM AND RENEWAL

3304.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

3304.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

3305. CONFIDENTIALITY

3305.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it

solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

3305.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

3305.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

3306. INTELLECTUAL PROPERTY

3306.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

3306.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

3307. DATA PROTECTION

3307.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

3307.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

3308. NON-SOLICITATION

3308.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

3308.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

3309. INDEPENDENT CONTRACTOR

3309.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

3309.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

3310. REPRESENTATIONS AND WARRANTIES

3310.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

3310.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

3311. LIMITATION OF LIABILITY

3311.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

3311.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

3311.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

3312. TERMINATION

3312.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

3312.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

3312.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

3313. GOVERNING LAW AND DISPUTE RESOLUTION

3313.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

3313.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

3314. NOTICES

3314.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

3314.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

3315. ENTIRE AGREEMENT

3315.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations

and understandings, whether written or oral.

3315.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

3316. COUNTERPARTS

3316.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

3316.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

3400. SCHEDULE 34 — SUPPLEMENTAL TERMS

3400.1 The following supplemental terms apply to Schedule 34 and form part of this Agreement.

3401. DEFINITIONS AND INTERPRETATION

3401.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

3401.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

3401.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

3402. SCOPE OF SERVICES

3402.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

3402.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

3402.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

3403. FEES, INVOICING AND PAYMENT

3403.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

3403.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

3403.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

3403.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

3404. TERM AND RENEWAL

3404.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

3404.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

3405. CONFIDENTIALITY

3405.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

3405.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

3405.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

3406. INTELLECTUAL PROPERTY

3406.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

3406.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

3407. DATA PROTECTION

3407.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

3407.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72)

hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

3408. NON-SOLICITATION

3408.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

3408.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

3409. INDEPENDENT CONTRACTOR

3409.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

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3411.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

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3412.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

3412.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

3413. GOVERNING LAW AND DISPUTE RESOLUTION

3413.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

3413.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

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3415.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

3416. COUNTERPARTS

3416.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

3416.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

3500. SCHEDULE 35 — SUPPLEMENTAL TERMS

3500.1 The following supplemental terms apply to Schedule 35 and form part of this Agreement.

3501. DEFINITIONS AND INTERPRETATION

3501.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

3501.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural

and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

3501.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

3502. SCOPE OF SERVICES

3502.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

3502.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

3502.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

3503. FEES, INVOICING AND PAYMENT

3503.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

3503.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

3503.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

3503.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

3504. TERM AND RENEWAL

3504.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

3504.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

3505. CONFIDENTIALITY

3505.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

3505.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

3505.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

3506. INTELLECTUAL PROPERTY

3506.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

3506.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

3507. DATA PROTECTION

3507.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

3507.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

3508. NON-SOLICITATION

3508.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

3508.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

3509. INDEPENDENT CONTRACTOR

3509.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

3509.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

3510. REPRESENTATIONS AND WARRANTIES

3510.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

3510.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

3511. LIMITATION OF LIABILITY

3511.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

3511.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

3511.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

3512. TERMINATION

3512.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

3512.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

3512.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

3513. GOVERNING LAW AND DISPUTE RESOLUTION

3513.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

3513.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

3514. NOTICES

3514.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

3514.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

3515. ENTIRE AGREEMENT

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3515.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is

not expressly set out in this Agreement.

3516. COUNTERPARTS

3516.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

3516.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

3600. SCHEDULE 36 — SUPPLEMENTAL TERMS

3600.1 The following supplemental terms apply to Schedule 36 and form part of this Agreement.

3601. DEFINITIONS AND INTERPRETATION

3601.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

3601.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

3601.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

3602. SCOPE OF SERVICES

3602.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

3602.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

3602.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

3603. FEES, INVOICING AND PAYMENT

3603.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

3603.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

3603.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

3603.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

3604. TERM AND RENEWAL

3604.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

3604.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

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3605.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

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3606. INTELLECTUAL PROPERTY

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3614. NOTICES

3614.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

3614.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

3615. ENTIRE AGREEMENT

3615.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

3615.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

3616. COUNTERPARTS

3616.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

3616.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

3700. SCHEDULE 37 — SUPPLEMENTAL TERMS

3700.1 The following supplemental terms apply to Schedule 37 and form part of this Agreement.

3701. DEFINITIONS AND INTERPRETATION

3701.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

3701.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

3701.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

3702. SCOPE OF SERVICES

3702.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

3702.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

3702.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

3703. FEES, INVOICING AND PAYMENT

3703.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

3703.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

3703.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

3703.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

3704. TERM AND RENEWAL

3704.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

3704.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

3705. CONFIDENTIALITY

3705.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

3705.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

3705.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5)

years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

3706. INTELLECTUAL PROPERTY

3706.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

3706.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

3707. DATA PROTECTION

3707.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

3707.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

3708. NON-SOLICITATION

3708.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

3708.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

3709. INDEPENDENT CONTRACTOR

3709.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

3709.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

3710. REPRESENTATIONS AND WARRANTIES

3710.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

3710.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

3711. LIMITATION OF LIABILITY

3711.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the

total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

3711.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

3711.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

3712. TERMINATION

3712.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

3712.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

3712.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

3713. GOVERNING LAW AND DISPUTE RESOLUTION

3713.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

3713.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

3714. NOTICES

3714.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

3714.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

3715. ENTIRE AGREEMENT

3715.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

3715.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

3716. COUNTERPARTS

3716.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

3716.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

3800. SCHEDULE 38 — SUPPLEMENTAL TERMS

3800.1 The following supplemental terms apply to Schedule 38 and form part of this Agreement.

3801. DEFINITIONS AND INTERPRETATION

3801.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

3801.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

3801.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

3802. SCOPE OF SERVICES

3802.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

3802.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

3802.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

3803. FEES, INVOICING AND PAYMENT

3803.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

3803.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

3803.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

3803.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

3804. TERM AND RENEWAL

3804.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

3804.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

3805. CONFIDENTIALITY

3805.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

3805.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

3805.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

3806. INTELLECTUAL PROPERTY

3806.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

3806.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

3807. DATA PROTECTION

3807.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

3807.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

3808. NON-SOLICITATION

3808.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

3808.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

3809. INDEPENDENT CONTRACTOR

3809.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

3809.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

3810. REPRESENTATIONS AND WARRANTIES

3810.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

3810.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

3811. LIMITATION OF LIABILITY

3811.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

3811.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

3811.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

3812. TERMINATION

3812.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

3812.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

3812.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

3813. GOVERNING LAW AND DISPUTE RESOLUTION

3813.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

3813.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

3814. NOTICES

3814.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

3814.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

3815. ENTIRE AGREEMENT

3815.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

3815.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

3816. COUNTERPARTS

3816.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

3816.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

3900. SCHEDULE 39 — SUPPLEMENTAL TERMS

3900.1 The following supplemental terms apply to Schedule 39 and form part of this Agreement.

3901. DEFINITIONS AND INTERPRETATION

3901.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

3901.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

3901.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

3902. SCOPE OF SERVICES

3902.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the

skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

3902.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

3902.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

3903. FEES, INVOICING AND PAYMENT

3903.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

3903.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

3903.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

3903.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

3904. TERM AND RENEWAL

3904.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

3904.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

3905. CONFIDENTIALITY

3905.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

3905.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

3905.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

3906. INTELLECTUAL PROPERTY

3906.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

3906.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

3907. DATA PROTECTION

3907.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

3907.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

3908. NON-SOLICITATION

3908.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

3908.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

3909. INDEPENDENT CONTRACTOR

3909.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

3909.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

3910. REPRESENTATIONS AND WARRANTIES

3910.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

3910.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

3911. LIMITATION OF LIABILITY

3911.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

3911.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

3911.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

3912. TERMINATION

3912.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

3912.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

3912.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

3913. GOVERNING LAW AND DISPUTE RESOLUTION

3913.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

3913.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

3914. NOTICES

3914.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

3914.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

3915. ENTIRE AGREEMENT

3915.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

3915.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

3916. COUNTERPARTS

3916.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

3916.2 Delivery of an executed counterpart by email in portable document format shall be as effective as

delivery of a manually executed counterpart.

4000. SCHEDULE 40 — SUPPLEMENTAL TERMS

4000.1 The following supplemental terms apply to Schedule 40 and form part of this Agreement.

4001. DEFINITIONS AND INTERPRETATION

4001.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

4001.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

4001.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

4002. SCOPE OF SERVICES

4002.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

4002.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

4002.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

4003. FEES, INVOICING AND PAYMENT

4003.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

4003.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

4003.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

4003.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

4004. TERM AND RENEWAL

4004.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

4004.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

4005. CONFIDENTIALITY

4005.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

4005.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

4005.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

4006. INTELLECTUAL PROPERTY

4006.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

4006.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

4007. DATA PROTECTION

4007.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

4007.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

4008. NON-SOLICITATION

4008.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

4008.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

4009. INDEPENDENT CONTRACTOR

4009.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

4009.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

4010. REPRESENTATIONS AND WARRANTIES

4010.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

4010.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

4011. LIMITATION OF LIABILITY

4011.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

4011.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

4011.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

4012. TERMINATION

4012.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

4012.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

4012.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

4013. GOVERNING LAW AND DISPUTE RESOLUTION

4013.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

4013.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of

the courts of Dubai.

4014. NOTICES

4014.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

4014.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

4015. ENTIRE AGREEMENT

4015.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

4015.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

4016. COUNTERPARTS

4016.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

4016.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

4100. SCHEDULE 41 — SUPPLEMENTAL TERMS

4100.1 The following supplemental terms apply to Schedule 41 and form part of this Agreement.

4101. DEFINITIONS AND INTERPRETATION

4101.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

4101.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

4101.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

4102. SCOPE OF SERVICES

4102.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

4102.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

4102.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

4103. FEES, INVOICING AND PAYMENT

4103.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

4103.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

4103.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

4103.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

4104. TERM AND RENEWAL

4104.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

4104.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

4105. CONFIDENTIALITY

4105.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

4105.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

4105.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

4106. INTELLECTUAL PROPERTY

4106.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client

under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

4106.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

4107. DATA PROTECTION

4107.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

4107.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

4108. NON-SOLICITATION

4108.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

4108.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

4109. INDEPENDENT CONTRACTOR

4109.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

4109.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

4110. REPRESENTATIONS AND WARRANTIES

4110.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

4110.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

4111. LIMITATION OF LIABILITY

4111.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

4111.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising

in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

4111.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

4112. TERMINATION

4112.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

4112.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

4112.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

4113. GOVERNING LAW AND DISPUTE RESOLUTION

4113.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

4113.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

4114. NOTICES

4114.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

4114.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

4115. ENTIRE AGREEMENT

4115.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

4115.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

4116. COUNTERPARTS

4116.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

4116.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

4200. SCHEDULE 42 — SUPPLEMENTAL TERMS

4200.1 The following supplemental terms apply to Schedule 42 and form part of this Agreement.

4201. DEFINITIONS AND INTERPRETATION

4201.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

4201.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

4201.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

4202. SCOPE OF SERVICES

4202.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

4202.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

4202.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

4203. FEES, INVOICING AND PAYMENT

4203.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

4203.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

4203.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

4203.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

4204. TERM AND RENEWAL

4204.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

4204.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

4205. CONFIDENTIALITY

4205.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

4205.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

4205.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

4206. INTELLECTUAL PROPERTY

4206.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

4206.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

4207. DATA PROTECTION

4207.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

4207.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

4208. NON-SOLICITATION

4208.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

4208.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

4209. INDEPENDENT CONTRACTOR

4209.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

4209.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

4210. REPRESENTATIONS AND WARRANTIES

4210.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

4210.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

4211. LIMITATION OF LIABILITY

4211.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

4211.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

4211.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

4212. TERMINATION

4212.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

4212.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

4212.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

4213. GOVERNING LAW AND DISPUTE RESOLUTION

4213.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

4213.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

4214. NOTICES

4214.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

4214.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

4215. ENTIRE AGREEMENT

4215.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

4215.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

4216. COUNTERPARTS

4216.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

4216.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.

4300. SCHEDULE 43 — SUPPLEMENTAL TERMS

4300.1 The following supplemental terms apply to Schedule 43 and form part of this Agreement.

4301. DEFINITIONS AND INTERPRETATION

4301.1 In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below: "Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party; "Business Day" means a day other than a Friday, Saturday or public holiday in the United Arab Emirates; "Deliverable" means any software, documentation, report or other material identified as a deliverable in a Statement of Work; "Statement of Work" or "SOW" means a written document executed by both Parties that references this Agreement and describes specific services to be performed.

4301.2 References to clauses and schedules are references to clauses and schedules of this Agreement. Headings are for convenience only and shall not affect interpretation. Words in the singular include the plural and vice versa, and references to a person include any individual, body corporate, unincorporated association or governmental authority.

4301.3 Where this Agreement uses the words "including", "includes" or "such as", those words shall be read as being followed by the words "without limitation".

4302. SCOPE OF SERVICES

4302.1 The Supplier shall provide the services described in each Statement of Work (the "Services") with the skill, care and diligence to be expected of a suitably qualified and experienced supplier performing services of a similar nature.

4302.2 Each Statement of Work shall specify the scope, the applicable fees, the expected delivery dates and the acceptance criteria for the Services. In the event of a conflict between this Agreement and a Statement of

Work, this Agreement shall prevail unless the Statement of Work expressly states otherwise and is signed by an authorised representative of each Party.

4302.3 The Supplier may engage subcontractors to perform any part of the Services, provided that the Supplier remains fully liable for the acts and omissions of its subcontractors as if they were its own and that any subcontractor is bound by confidentiality obligations no less protective than those set out in clause 5.

4303. FEES, INVOICING AND PAYMENT

4303.1 The Client shall pay the Supplier the fees set out in the applicable Statement of Work. Unless otherwise stated, all fees are exclusive of value added tax and any other applicable taxes, which shall be payable by the Client in addition.

4303.2 The Supplier shall invoice the Client monthly in arrears for Services performed during the preceding calendar month. The Client shall pay each undisputed invoice within sixty (60) days of the date of receipt of a valid invoice.

4303.3 Where an invoice remains unpaid after its due date, the Supplier may charge interest on the overdue amount at a rate of two per cent (2%) per annum above the base rate of the Emirates NBD Bank from time to time, calculated on a daily basis from the due date until payment is received in full.

4303.4 The Client shall reimburse the Supplier for reasonable pre-approved travel and subsistence expenses incurred in the performance of the Services, provided that such expenses are supported by receipts and submitted within thirty (30) days of being incurred.

4304. TERM AND RENEWAL

4304.1 This Agreement shall commence on the Effective Date and shall continue in force for an initial term of twenty-four (24) months (the "Initial Term"), unless earlier terminated in accordance with clause 12.

4304.2 Following the Initial Term, this Agreement shall automatically renew for successive periods of twelve (12) months (each a "Renewal Term") unless either Party gives written notice of non-renewal not less than ninety (90) days before the end of the then-current term.

4305. CONFIDENTIALITY

4305.1 Each Party may receive information relating to the business, technology, customers or finances of the other Party that is marked confidential or that a reasonable person would understand to be confidential ("Confidential Information"). The receiving Party shall keep the Confidential Information secret, shall use it solely for the purposes of this Agreement, and shall not disclose it to any third party except as permitted by this clause 5.

4305.2 Confidential Information does not include information that is or becomes publicly available other than through a breach of this Agreement, was already lawfully known to the receiving Party without a duty of confidence, or is independently developed by the receiving Party without use of the Confidential Information.

4305.3 The obligations in this clause 5 shall survive termination of this Agreement for a period of five (5) years, except in respect of trade secrets, where the obligations shall continue for so long as the information remains a trade secret.

4306. INTELLECTUAL PROPERTY

4306.1 All intellectual property rights in the Deliverables created by the Supplier specifically for the Client under a Statement of Work shall vest in the Client upon full payment of the fees relating to those Deliverables.

4306.2 Notwithstanding clause 6.1, the Supplier retains all intellectual property rights in its pre-existing materials, tools, libraries, methodologies and know-how ("Supplier Background IP"), whether created before or independently of this Agreement, and grants the Client a perpetual, non-exclusive, worldwide, royalty-free licence to use the Supplier Background IP to the extent it is embedded in the Deliverables.

4307. DATA PROTECTION

4307.1 Where the Supplier processes personal data on behalf of the Client in the course of providing the Services, the Supplier shall act only on documented instructions from the Client, shall implement appropriate technical and organisational measures to protect that personal data, and shall assist the Client in responding to requests from data subjects.

4307.2 The Supplier shall notify the Client without undue delay, and in any event within seventy-two (72) hours, after becoming aware of a personal data breach affecting personal data processed on behalf of the Client.

4308. NON-SOLICITATION

4308.1 During the term of this Agreement and for a period of twelve (12) months thereafter, neither Party shall knowingly solicit for employment any individual who is employed or engaged by the other Party and who was directly involved in the performance of the Services, without the prior written consent of the other Party.

4308.2 Nothing in this clause 8 shall prevent either Party from employing any individual who responds to a general advertisement not targeted at the employees of the other Party.

4309. INDEPENDENT CONTRACTOR

4309.1 The Supplier is an independent contractor and nothing in this Agreement shall be construed as creating a partnership, joint venture, agency or employment relationship between the Parties.

4309.2 The Supplier shall be solely responsible for the payment of all taxes, national insurance contributions and other statutory payments due in respect of its personnel, and shall indemnify the Client against any liability arising from a failure to make such payments.

4310. REPRESENTATIONS AND WARRANTIES

4310.1 Each Party represents and warrants that it has full power and authority to enter into this Agreement and that the execution and performance of this Agreement does not and will not breach any other agreement to which it is a party.

4310.2 The Supplier warrants that the Services will be performed by suitably qualified personnel and that the Deliverables will, at the date of acceptance, materially conform to the applicable Statement of Work.

4311. LIMITATION OF LIABILITY

4311.1 Subject to clause 11.3, the total aggregate liability of each Party arising out of or in connection with this Agreement, whether in contract, tort (including negligence), statute or otherwise, shall not exceed the total fees paid or payable by the Client under this Agreement in the twelve (12) months immediately preceding the event giving rise to the claim, and in any event shall not exceed one hundred thousand United Arab Emirates Dirhams (AED 100,000).

4311.2 Subject to clause 11.3, neither Party shall be liable to the other for any loss of profit, loss of revenue, loss of anticipated savings, loss of business opportunity or any indirect or consequential loss, whether arising in contract, tort or otherwise, even if that Party was advised of the possibility of such loss.

4311.3 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited or excluded.

4312. TERMINATION

4312.1 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach of this Agreement and fails to remedy that breach within sixty (60) days of receiving written notice describing the breach and requiring it to be remedied.

4312.2 Either Party may terminate this Agreement immediately by written notice if the other Party becomes insolvent, enters administration or liquidation, or ceases to carry on business.

4312.3 On termination of this Agreement for any reason, the Client shall pay the Supplier for all Services performed and all expenses properly incurred up to the date of termination, and the Supplier shall deliver to the Client all Deliverables and Confidential Information in its possession or control.

4313. GOVERNING LAW AND DISPUTE RESOLUTION

4313.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the United Arab Emirates as applied in the Emirate of Dubai.

4313.2 The Parties shall attempt in good faith to resolve any dispute arising out of this Agreement through negotiation between senior representatives of each Party within fourteen (14) days of a written request to do so. If the dispute is not resolved within that period, the dispute shall be referred to the exclusive jurisdiction of the courts of Dubai.

4314. NOTICES

4314.1 Any notice given under this Agreement shall be in writing and shall be delivered by hand, sent by pre-paid recorded post, or sent by email to the address of the relevant Party set out in this clause 14.

4314.2 Notices shall be deemed received: if delivered by hand, at the time of delivery; if sent by recorded post, on the second Business Day after posting; and if sent by email, at the time of transmission, provided no bounce or error message is received.

4315. ENTIRE AGREEMENT

4315.1 This Agreement, together with each Statement of Work, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, correspondence, negotiations and understandings, whether written or oral.

4315.2 Each Party acknowledges that it has not relied on any statement, representation or warranty that is not expressly set out in this Agreement.

4316. COUNTERPARTS

4316.1 This Agreement may be executed in any number of counterparts, each of which shall constitute an original, and all of which together shall constitute one and the same instrument.

4316.2 Delivery of an executed counterpart by email in portable document format shall be as effective as delivery of a manually executed counterpart.